

GOVERNMENT OF KERALA

Abstract

Local Self Government Department — Building permits for commercial projects in ecologically sensitive zones — Revised setback norms, environmental-clearance verification, project-area calculation and permit-file documentation — Orders issued.

LOCAL SELF GOVERNMENT (TOWN PLANNING) DEPARTMENT

G.O.(P) No. 45/2024/LSGD

Dated, Thiruvananthapuram, 18th September, 2024

Read:

1. Kerala Building Rules, 2022.
2. G.O. No. 22/2021/LSGD dated 12th August, 2021.
3. Report of the Inter-Departmental Working Group on Building Permissions in Environmentally Sensitive Areas, 2024.
4. Letter No. TP/ENV/2024/118 dated 30th August, 2024 from the Director of Town and Country Planning.

ORDER

The Government have reviewed the procedures followed by Local Self Government Institutions in scrutinising applications for commercial building permits located near lakes, rivers, backwaters, wetlands, reservoirs, canals and notified coastal protection areas.

2. The review has disclosed that applications are being assessed using inconsistent distance measurements, incomplete project-area calculations and outdated departmental instructions. In certain cases, receipts showing that an application for environmental clearance had been submitted were treated as final environmental clearance. In other cases, separate building applications forming part of one integrated development were assessed independently.
3. Government are therefore pleased to issue the following directions for ensuring uniformity, traceability and pre-issuance compliance verification in the processing of commercial building-permit applications in ecologically sensitive zones.

Definitions

4. For the purpose of this Order—
- (i) “**ecologically sensitive zone**” means land situated within 500 metres of the nearest verified boundary of a lake, river, backwater, wetland, reservoir, canal or notified coastal protection area;
 - (ii) “**water-body boundary**” means the boundary established by an authenticated survey, approved site plan, revenue record, competent departmental record or other reliable official measurement accepted by the Local Self Government Institution;
 - (iii) “**large commercial project**” means a commercial project having an aggregate proposed built-up area exceeding 3,000 square metres;
 - (iv) “**aggregate proposed built-up area**” means the combined built-up area of all blocks, phases, wings or structures forming part of one development proposal or functionally, financially or physically connected with one another; and
 - (v) “**prior environmental clearance**” means final written clearance issued by the competent environmental authority for the project and site under consideration. An acknowledgement, application receipt, proposal number or pending-application status shall not be treated as prior environmental clearance.

Revised setback from water bodies

5. With effect from 1st October, 2024, every new commercial building proposed within an ecologically sensitive zone shall maintain a minimum unobstructed horizontal setback of 10 metres from the nearest verified boundary of the relevant water body.
6. The setback specified in paragraph 5 shall be treated as the minimum requirement. A greater setback shall apply where any environmental clearance, town-planning plan, flood-management direction, coastal-protection requirement or other applicable instrument prescribes a greater distance.
7. The setback shall be measured from the nearest point of the proposed permanent structure, including covered projections forming part of the building footprint, to the nearest verified boundary of the relevant water body.
8. The site plan submitted with the building-permit application shall clearly indicate—
- (i) the boundary of the water body;
 - (ii) the reference point used for measurement;
 - (iii) the proposed building footprint;
 - (iv) the calculated distance; and
 - (v) the professional or authority responsible for certifying the measurement.
9. Where the water-body boundary or measurement is disputed, the Local Self Government Institution shall defer final decision on the building permit until a reliable measurement is obtained and placed on the permit file.

Environmental-clearance requirement

10. No Local Self Government Institution shall issue a final building permit for a large commercial project located within an ecologically sensitive zone unless valid prior environmental clearance is produced and verified.

11. The requirement under paragraph 10 shall apply where both the following conditions are satisfied—

- (i) the aggregate proposed built-up area exceeds 3,000 square metres; and
- (ii) the site is situated within 500 metres of a relevant water body or notified coastal protection area.

12. The following shall not, by themselves, be treated as prior environmental clearance—

- (i) an application acknowledgement;
- (ii) a fee-payment receipt;
- (iii) a proposal or reference number;
- (iv) a letter stating that the application is under examination;
- (v) an undertaking by the applicant to obtain clearance at a later stage; or
- (vi) a recommendation which has not matured into a final clearance.

13. The environmental-clearance document shall be verified with reference to—

- (i) the name and identity of the project;
- (ii) the applicant or project proponent;
- (iii) survey numbers or site location;
- (iv) the total approved built-up area;
- (v) permitted land use and project components;
- (vi) date of issue and validity period;
- (vii) conditions imposed by the environmental authority; and
- (viii) issuing authority and reference number.

14. Where the proposed project is larger than the project described in the environmental clearance, or where the project design has materially changed, the Local Self Government Institution shall obtain clarification or revised clearance before proceeding with the building-permit decision.

15. The permit file shall contain a verification note identifying the officer who examined the environmental clearance and the facts on which the officer concluded that the clearance covers the proposal under consideration.

Integrated and phased projects

16. Two or more applications shall be assessed as one integrated proposal where they involve substantially the same applicant or controlling entity, land parcel or adjoining land parcels, development purpose, access, utility, parking, drainage, common infrastructure, master plan or project agreement.
17. The aggregate built-up area of an integrated project shall be considered for determining whether the threshold of 3,000 square metres is crossed.
18. Separate submission of building blocks or phases shall not, by itself, remove the environmental-clearance or setback requirements applicable to the integrated project.
19. Where the competent officer has reason to believe that a project has been divided to avoid a threshold, the officer shall record the basis of such belief and call for a consolidated project statement from the applicant.

Permit-file verification

20. Before issuing a final building permit for a large commercial project in an ecologically sensitive zone, the Local Self Government Institution shall verify and record the following particulars:

Sl. No.	Particulars to be verified
1	Classification of the project and aggregate built-up area
2	Distance from the nearest water body or protected feature
3	Compliance with the minimum setback or any stricter requirement
4	Final environmental clearance covering the project, site and area
5	Conditions imposed in the environmental clearance and implementation plan
6	Applicable local-body and departmental no-objection certificates
7	Fire and life-safety clearance, wherever applicable
8	Certified site plan showing boundary, footprint and measurements
9	Applicant's declaration regarding completeness and accuracy
10	Reasons recorded by the permit-issuing officer for accepting each mandatory document

21. A checklist marked complete shall not be treated as curing an actually missing approval. The underlying documents shall be verified by the concerned officer.

Transitional provisions

22. Applications submitted before 1st October, 2024 but not finally decided on that date shall be reviewed for compliance with the requirements of this Order, subject to the applicable procedural framework.
23. A permit issued before the effective date of this Order shall not automatically be treated as invalid solely on account of the revised setback introduced under this Order. Any

subsequent expansion, material alteration or fresh building-permit application shall, however, be assessed in accordance with the requirements then in force.

24. An application which relied upon G.O. No. 22/2021/LSGD but remained incomplete or pending on the effective date shall be placed for review under this Order.

25. The Local Self Government Institution shall record the version of the applicable instruction relied upon for taking the decision and the reasons for such reliance.

Responsibility of permit-issuing officers

26. The permit-issuing officer shall ensure that—

- (i) the project is correctly classified;
- (ii) the distance from the relevant water body is verified using a reliable record;
- (iii) the minimum setback specified in this Order, or any stricter applicable requirement, is satisfied;
- (iv) final prior environmental clearance is available where the threshold conditions apply;
- (v) multiple applications forming one integrated project are examined together;
- (vi) all material approvals and deficiencies are recorded in the permit file;
- (vii) a reasoned deficiency notice is issued where a mandatory document is missing; and
- (viii) a final permit is not issued while a mandatory prior approval remains absent or unverifiable.

Supersession

27. G.O. No. 22/2021/LSGD dated 12th August, 2021 is hereby superseded to the extent of inconsistency with this Order.

28. In particular, the earlier 5-metre minimum setback from water bodies and the earlier threshold treatment which did not require explicit prior environmental-clearance verification for certain commercial projects below 5,000 square metres shall not be relied upon for applications governed by this Order.

29. Provisions of earlier instructions which are not inconsistent with this Order may be read as supplementary guidance, subject to the Kerala Building Rules, 2022 and subsequent directions of the competent authority.

Implementation

30. All Local Self Government Institutions shall update their internal scrutiny templates and include separate fields for—

- (i) environmental-clearance reference number and validity;
- (ii) measured distance from the nearest water body;

(iii) proposed setback; and

(iv) verification remarks of the concerned officer.

31. The revised scrutiny template shall be used for applications received on or after 1st October, 2024.

32. The Director of Urban Affairs and the Director of Town and Country Planning shall issue such further instructions as may be necessary for effective implementation of this Order.

33. This Order shall be published in the Kerala Gazette.

By order of the Governor,

[Signature]

Additional Chief Secretary to Government

To

The Principal Accountant General (Audit), Kerala, Thiruvananthapuram.

The Director of Urban Affairs, Thiruvananthapuram.

The Director of Town and Country Planning, Thiruvananthapuram.

All Municipal Corporations / Municipalities / Grama Panchayats.

The Law Department.

The Environment Department.

The Information and Public Relations Department.

Stock File / Office Copy.

Citation anchors for the prototype

- G.O.(P) No. 45/2024/LSGD, paras 4–9 — definitions and revised setback.
- G.O.(P) No. 45/2024/LSGD, paras 10–15 — prior environmental-clearance requirement.
- G.O.(P) No. 45/2024/LSGD, paras 16–19 — integrated and phased projects.
- G.O.(P) No. 45/2024/LSGD, paras 20–21 — permit-file verification.
- G.O.(P) No. 45/2024/LSGD, paras 22–25 — transitional treatment.
- G.O.(P) No. 45/2024/LSGD, paras 27–29 — supersession of G.O. No. 22/2021/LSGD.